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No V.24

EXECUTIVE ORDER
AUTHORIZING THE ALIEN PROPERTY CUSTODIAN
TO SELL CERTAIN PROPERTY AT PRIVATE SALE

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By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of Ninety-five thousand ($95,000) Dollars, certain real estate delivered to him as the property of Adolph Nussbaum, Friederich Nussbaum, Ernst Nussbaum, Elizabeth Nussbaum and Clara Nussbaum, residing

in Germany, whom, after investigation, he did determine to be enemies within the purview of the said Act as amended, which said real estate is situate in the City and County of San Francisco, State of California, and described as follows, to-wit:,

Block numbered and laid down on the official map of said City and County as Two Hundred and fifty-two (252), bounded on the north by Geary Street (formerly Point Lobos Avenue, before that Cliff Avenue, and prior thereto Point Lobos Road); on the south by Anza Street, formerly "A" Street; on the east by Thirty-second Avenue, and on the west by Thirty-third Avenue, being two hundred and forty (240) feet on Anza Street, formerly [redacted] Street, and on Geary Street (formerly Point Lobos Avenue, before that Cliff Avenue, and prior thereto Point Lobos Road), and six Hundred (600) feet on Thirty-second and Thirty-third Avenues.

The reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of the said real estate has been received by the Alien Property Custodian;

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided;

(c) The attorney in fact for the alien enemies has given assent that this offer be accepted and the property sold;

(d) Sale is necessary to produce working capital for the development of other real estate held under the same trusts.

The White House,

November 17, 1934.